

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JULY 21, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, July 21, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, July 20, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

PLEASE NOTE SPECIAL DATE: Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0092787 Alexander, Zhelezoglo v. Nelson, Forest

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Reconsideration

Defendant Forest Nelson moves for reconsideration of the court's February 17, 2026 ruling on submitted matter pursuant to Code of Civil Procedure section 1008 and the court's inherent authority. Plaintiff opposes the motion.

A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have

discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.)

Here, defendant points to a motion for summary adjudication granted in related matter S-CV-0055104 on January 22, 2026 and the evidence in support and in opposition thereof as new evidence this court did not consider for the January 20, 2026 motion hearing and its February 17, 2026 ruling. Defendant also submits documents from other related cases as exhibits A through D. While the court order granting the motion for summary adjudication in S-CV-0055104 occurred after the hearing, all of the evidence filed in support and in opposition thereof had been filed months before (on October 29, 2025 and on January 2, 2026). Defendant has not shown he could not with reasonable diligence have discovered or produced this information prior to the January 20, 2026 motion hearing. Accordingly, defendant falls short of his obligation of showing new or different facts, circumstances, or law.

Defendant also asks this court to exercise its inherent authority to reconsider its prior decision. However, defendant presents insufficient grounds to justify such an action.

Based on the foregoing, the motion for reconsideration is denied.

2. S-CV-0046361 Fialho Family Trust v. The Willis K Polite Jr. Trust

This tentative ruling is issued by the **Honorable Charles D. Wachob**. If oral argument is timely requested, it will be heard on **July 23, 2026 at 8:30 a.m. in Department 2**. Department 2 is located at 101 Maple Street, Auburn, California 95603.

Moving parties are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Correct Judgment

Defendant and cross-complainant moves to correct the judgment pursuant to Code of Civil Procedure 473(d), arguing it contains two clerical errors. Specifically, defendant argues the judgment (1) fails to expressly dissolve the preliminary injunction and (2) incorrectly names the successor trustee as “Naomi Polite” rather than “Mark Polite.” Plaintiffs and cross-defendants oppose the motion.

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed[.] . . .” (Code Civ. Proc., § 473, subd. (d).) “A clerical error results when the order or judgment misstates the court’s actual intent (i.e., error in recording the judgment rendered), and judicial error results when the order or judgment entered was intended, even though based on an error of law (i.e., error in rendering the judgment). [Citation.]” (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 346, citation omitted.) “A judicial error is the deliberate result of judicial reasoning and determination.” [Citation.]” (*Estate of Douglas* (2022) 83 Cal.App.5th 690, 695, citation omitted.) “Any attempt by a